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# CHAPTER 2.3 RESIDENTIAL FLAT BUILDINGS AND SHOP TOP HOUSING

## 2.3.1 INTRODUCTION

### 2.3.1.1 Objectives of this Chapter

The Chapter aims to protect and enhance the amenity of new and existing residential areas or areas where mixed-use development is permissible by:

- promoting standards of design which achieve functional and aesthetic quality in development;
- encouraging designs of high architectural quality;
- encouraging residential development appropriate to the local area context;
- complementing the provisions of *State Environmental Planning Policy* (SEPP) *65 – Design Quality of Residential Apartment Development,* and the *Apartment Design Guide* (ADG) (Department of Planning and Environment 2015) where applicable.

### 2.3.1.2 Land to which this Chapter Applies

All land within the Central Coast Local Government Area where *Central Coast Local Environmental Plan* (LEP) *2022* applies.

### 2.3.1.3 Proposals to which this Chapter applies

This Chapter applies to development for the purpose of:

- a residential flat building;
- shop top housing or mixed use development that includes a residential accommodation component;
- manor houses

Where the building(s) concerned is at least 3 or more storeys and contains at least 4 or more dwellings this chapter must be read in conjunction with SEPP 65 and the ADG. In other instances the ADG is to be used as a guide to appropriate development.

Where the proposal is for shop top housing or mixed use development, this chapter is to be read in conjunction with Chapter 2.5 Commercial Centres and any relevant Location Specific Chapters under Parts 4 and 5 of *Central Coast Development Control Plan (DCP)*.

Appendices B and C are provided to assist in guiding the information that should be provided as part of a submission for all applications and in particular those subject to the provisions of SEPP 65 and the ADG.

Clause 1.9 (2A) of Central Coast LEP 2022 states that *"State Environmental Planning Policy No 65 – Design Quality for Residential Apartment Development* applies in the same way that it applies to residential flat buildings to the following land uses - Boarding houses; Serviced apartments". The provisions of this chapter are to be used to help guide development proposals for these land uses where no equivalent provisions are in force.

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# 2.3.2 SITE AND CONTEXT ANALYSIS

## OBJECTIVE

- To encourage design that results from an analysis of the site character and capacity, and its suitability for the proposed development

## REQUIREMENTS

a A Site Analysis Plan shall be submitted with any Development Application in accordance with Appendix A – Submission Information.

*Note: Appendix 1 of the ADG provides further guidance for site analysis considerations*

# 2.3.3 BUILDING SCALE AND DENSITY

## 2.3.3.1 Building Height

### OBJECTIVES

- To ensure that buildings are compatible with the existing and desired future character of the locality
- To ensure that the height of buildings protects the amenity of neighbouring properties in terms of visual bulk, access to sunlight, privacy and views
- To ensure that building height is not visually obtrusive, is compatible with the scenic qualities of hillside and ridgetop locations and respects the sites natural topography

### REQUIREMENTS

a Central Coast LEP 2022 contains a Height of Building Map for areas within the Local Government Area (LGA) where residential flat development consisting of three or more storeys in height can be built and provides the relevant considerations.

b In areas of the Central Coast LGA where residential flat buildings are permissible and:

- are not identified in the height maps under Central Coast LEP 2022 or
- are identified with a maximum building height of 8.5m or 9.5m under Central Coast LEP 2022

shall not exceed 2 storeys in height.

## 2.3.3.2 Density – Floor Space Ratio

### OBJECTIVES

- To have development sites and densities that are appropriate in the zone and compatible with the local context
- To ensure building bulk and scale provisions are compatible with neighbouring development

### REQUIREMENTS

a Central Coast LEP 2022 contains a Floor Space Ratio map and the relevant considerations for certain areas within the Central Coast LGA.

b The maximum floor space ratio for development proposals subject to this Chapter and that are located on land not included in the Floor Space Ratio Map of Central Coast LEP 2022 is 0.6:1.

c Clause 4.4 (A)(2) of Central Coast LEP 2022 allows for higher densities when it is can be demonstrated that the proposal relates to addressing housing affordability issues and not just result in an increase in density of luxury housing in prime locations.

### 2.3.3.3 Natural Landscape Area

#### OBJECTIVES

- To provide an area on site that enables soft landscaping and deep soil planting considered appropriate for the Central Coast
- To provide a pleasant outlook
- To provide areas on site that permit stormwater infiltration

#### REQUIREMENT

a A minimum 25% of site area at ground level shall be 'soft' landscaping, excluding all hardstand areas. Open space areas and setback areas may be included in this calculation only where these do not include hardstand surfaces.

## 2.3.4 BUILDING LINES

#### OBJECTIVES

- To maintain and enhance existing streetscapes
- To provide adequate privacy and solar access of adjacent properties
- Provide visual and acoustic privacy

#### REQUIREMENTS

### 2.3.4 1 Setbacks for Residential Flat Buildings – 3 Storeys or more

| | Aspect | Minimum Setback Required |
|---|---|---|
| a | Front setbacks | 6 metres applies to all aspects of the development, with the exception of a portico, or an approved structure required for a waste collection area. |
| b | Side & rear setbacks | i First to fourth Storey: 6.0 m<br>ii Fifth to eighth Storey: 9.0 m<br>iii Ninth storey & above: 12.0 m<br>*Note: No more than 4 consecutive storeys of the building shall be at the same setback.* |
| c | Corner Allotments | Same as side and rear setbacks, plus comply with the sight preservation lines. |
| d | Foreshore | 20m or as mapped under Central Coast LEP 2022<br><br>Where a setback is not specified as outlined above, development is to be setback from the waterbody or |

| Aspect | Minimum Setback Required |
|---|---|
| | from land that is unzoned land or zoned public recreation or open space which adjoins the waterway as follows:<br>▪ 6m for the ground storey<br>▪ 10m for any storey above the ground storey<br>▪ 30m from the Hawkesbury River or any of its tributaries<br>*Note: Where a property is affected by coastal hazards additional setbacks may apply.* |

**Table 1 – setbacks for residential flat buildings- 3 or more storeys**

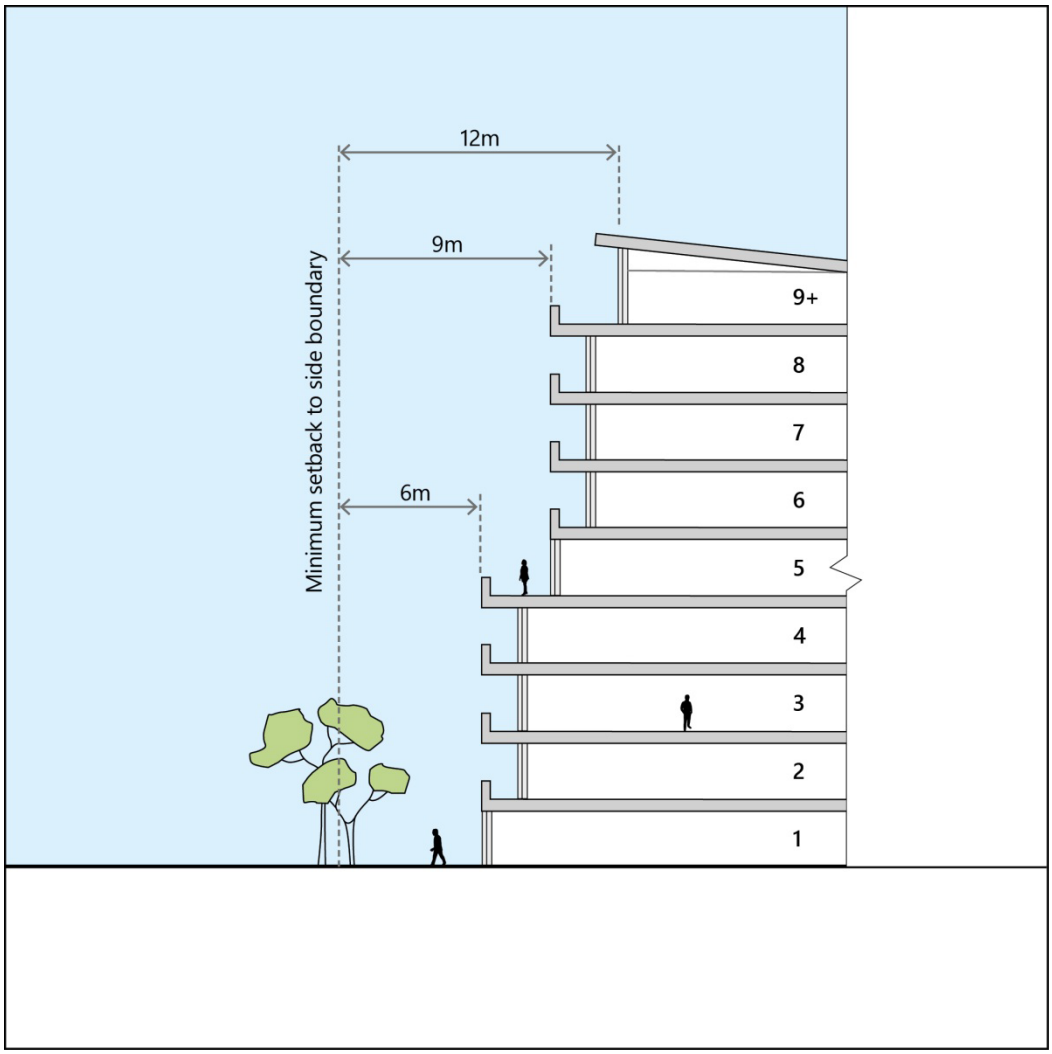



**Figure 1 Setbacks for residential flat buildings**

*Note: These setback requirements do not apply to any commercial portion of the proposal. The setback requirements for commercial development is specified in Chapter 2.5 Commercial Development and/or and relevant Location Specific Chapters under Parts 4 and 5 of this DCP.*

## 2.3.4 2 Setbacks for Residential Flat Buildings – 2 Storeys only

| | Aspect | Minimum Setback Required |
|---|---|---|
| a | Front setbacks | 6 metres applies to all aspects of the development, with the exception of a portico, or structure required for an approved waste collection area. |
| b | Side & rear setbacks | i Side - for any part of the building with a height of up to 4.5m—0.9m, and for any part of the building with a height of more than 4.5m—0.9m plus one-quarter of the height of the building above 4.5m<br>ii Rear – 4.5m |
| c | Corner Allotments | Same as side and rear setbacks, plus comply with the sight preservation lines. |
| d | Foreshore | i As mapped under Central Coast LEP 2022<br><br>ii Where a setback is not specified as outlined above, development is to be setback from the waterbody or from land that is unzoned land or zoned public recreation or open space which adjoins the waterway as follows:<br><br>▪ 6m for the ground storey<br>▪ 10m for any storey above the ground storey<br>▪ 30m from the Hawkesbury River or any of its tributaries<br><br>*Where a property is affected by coastal hazards additional setbacks may apply.* |

**Table 2 – setbacks for residential flat buildings-2 storeys only**

## 2.3.4 3 Setbacks – General Considerations

a Setbacks are to be considered with the Visual Privacy Design Criteria listed under Objective 3F-1 of the *ADG*. Where only non-habitable rooms front an external boundary Council may consider a reduction in the setback requirements in accordance with the ADG visual privacy provisions.

b Where a property is affected by coastal hazards additional setbacks may apply (refer to Chapter 3.2).

c Setback areas shall be suitably landscaped to enhance the appearance of the development and soften hardstand areas of the site

d Special setback and access location requirements may apply in relation to sites adjacent to roundabouts, relating to the roundabout geometry and the design speeds of the adjacent roads. Enquiries should be made with Council prior to preparing design plans for development on sites adjacent to roundabouts or other traffic calming devices.

e On corner allotments the side street is generally taken to be the boundary with the greater frontage.

f No building is to be erected within the triangle from the intersection of the two street boundary lines formed by a sight line 12m along the primary road frontage and 6m along the terminating road frontage, as illustrated in Figure 1.

*Note: a corner lot must have an interior angle at the corner less than 135º; otherwise it's a continuation of an irregular front boundary)*

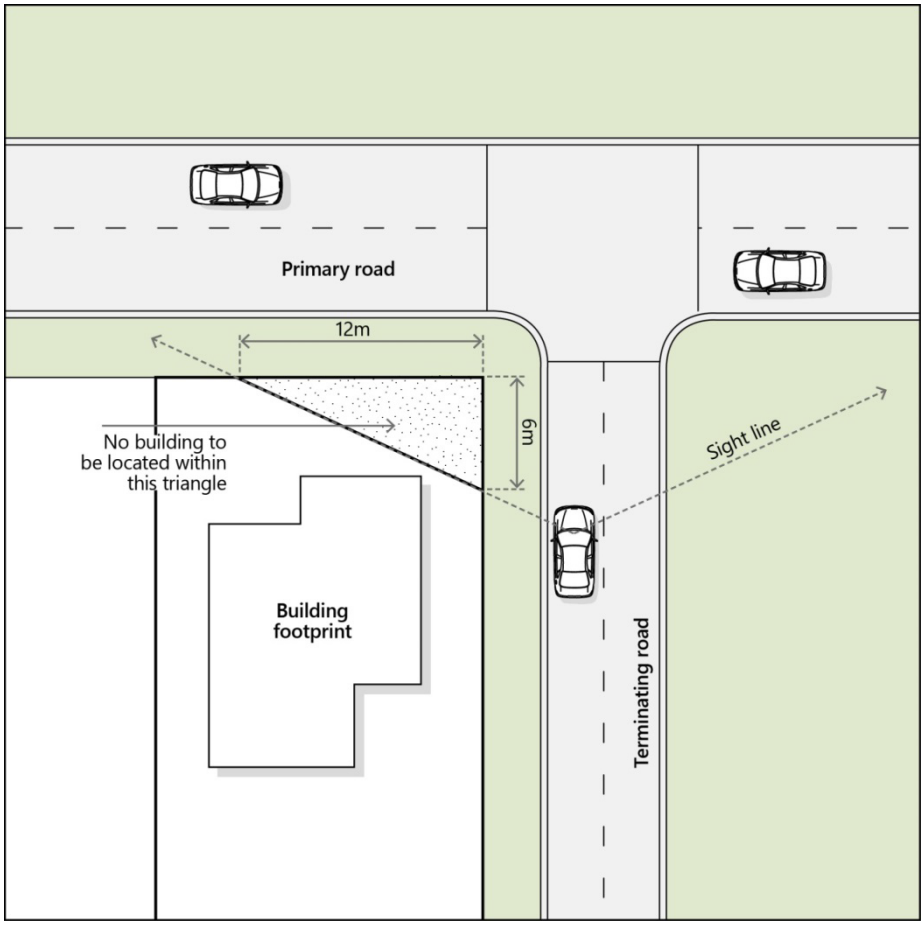



**Figure 2 – Corner lot setbacks**

# 2.3.5 BUILT FORM AND ARTICULATION

## 2.3.5.1 Facades & Articulation

### OBJECTIVES

- To ensure design of development is of a high quality which contributes positively to the streetscape;
- To ensure design of development consistent with the desired character of the area;
- To ensure design of development visually interesting, offering variety to the observer whilst presenting an integrated design outcome

### REQUIREMENTS

a Facades are to be articulated in length and height. Monotonous and unbroken lengths of wall exceeding 10 metres in length and 3 metres in height shall not be permitted. In development of two or more storeys, physical design elements shall be used to provide visual interest to the building. These elements may include roof, wall and eave projections and indentations roofed decks, pergolas, awnings and other permanent shading structures, etc. A mixture of building materials including masonry, timber and glass is encouraged.

b For mixed use development, residential apartments are to be separated and distinguished from commercial entries to provide security and an identifiable street address for each of the different users.

c Shop-top housing development should be setback from the front street boundary and buffered from the street by providing a balcony or similar.

*Note: The Design Quality Principles in the ADG and SEPP 65 provide a guide to achieving good design and the means of evaluating the merit of proposed solutions and should be considered for proposals under this Chapter.*

## 2.3.5.2 Roof Elements

### OBJECTIVE

- To ensure that roof top structures and roof design do not detract from the architectural merit of the building.

### REQUIREMENTS

a Roof design is to respond to the orientation of the site. For example by using eaves and skillion roofs to respond to solar access.

b Roof top gardens, terraces, decks and enclosures shall be suitably set back from the building edge to maintain the privacy of adjoining sites.

c The visual impact of service elements is to be minimised by integrating them into the design of the roof.

# 2.3.6 RESIDENTIAL AMENITY

## 2.3.6.1 Views

### OBJECTIVES

- To facilitate view sharing whilst not restricting the reasonable development potential of a site

- To have opportunities for public vistas and public views from streets and public places protected and enhanced through building design, location and landscape design
- To protect views by permitting development which minimises obstruction of such views where enjoyed from internal and external living areas

## REQUIREMENTS

a New development shall be designed to minimise loss of views from adjoining and adjacent properties identified in the site analysis process, while still providing opportunities for views from the proposed development.

b Design solutions must respond graphically to the site analysis outcomes through the issue of plans, elevations, photographs and photomontages to demonstrate how view sharing is to be achieved.

c A visual analysis illustrating the impacts of the proposed development upon views may be required for developments which have the potential to obstruct views. This analysis will be required to outline the impact of the development on the views of all affected properties.

d Measures to be used to maintain views include building setbacks, gaps between buildings, minimal floor to ceiling heights, raked ceilings to upper floors, gabled or hipped roofs, splay corners, and use of transparent materials for balustrades.

e Important public views and vistas beyond the site shall be protected and maintained where possible, through responsive building form and treatment including roof design and increased setbacks.

f Where there is a potential loss of view for nearby properties, applications are to address the NSW Land and Environment Court Planning Principles relating to view sharing.

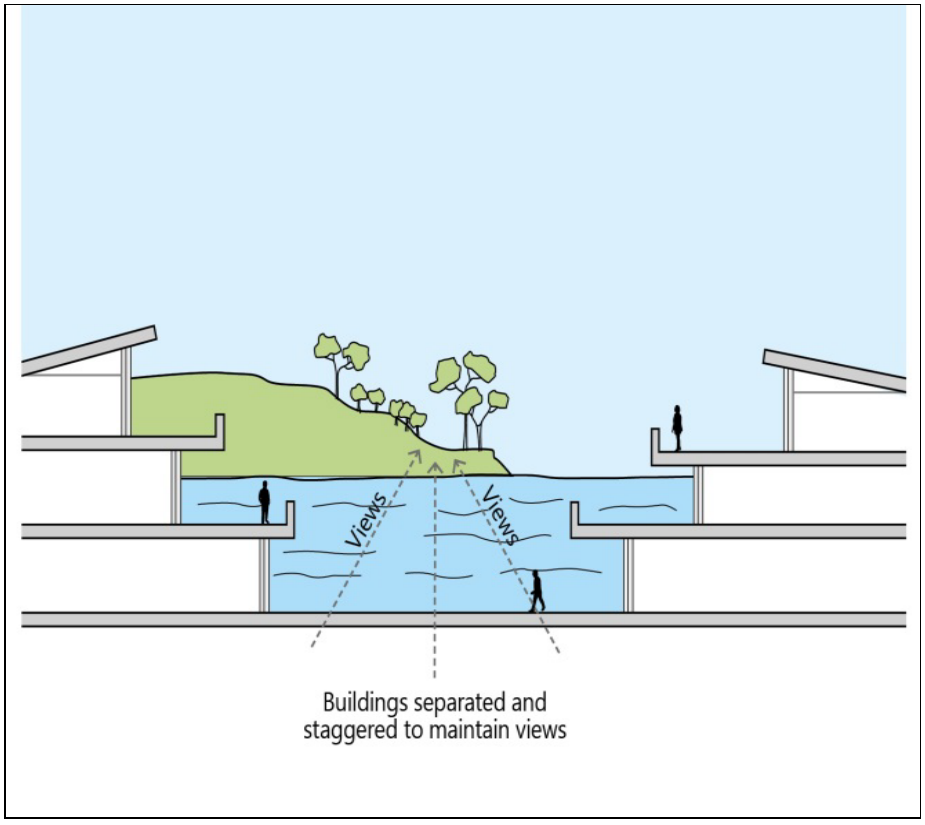



**Figure 3A - Examples of potential solutions to maintain views**

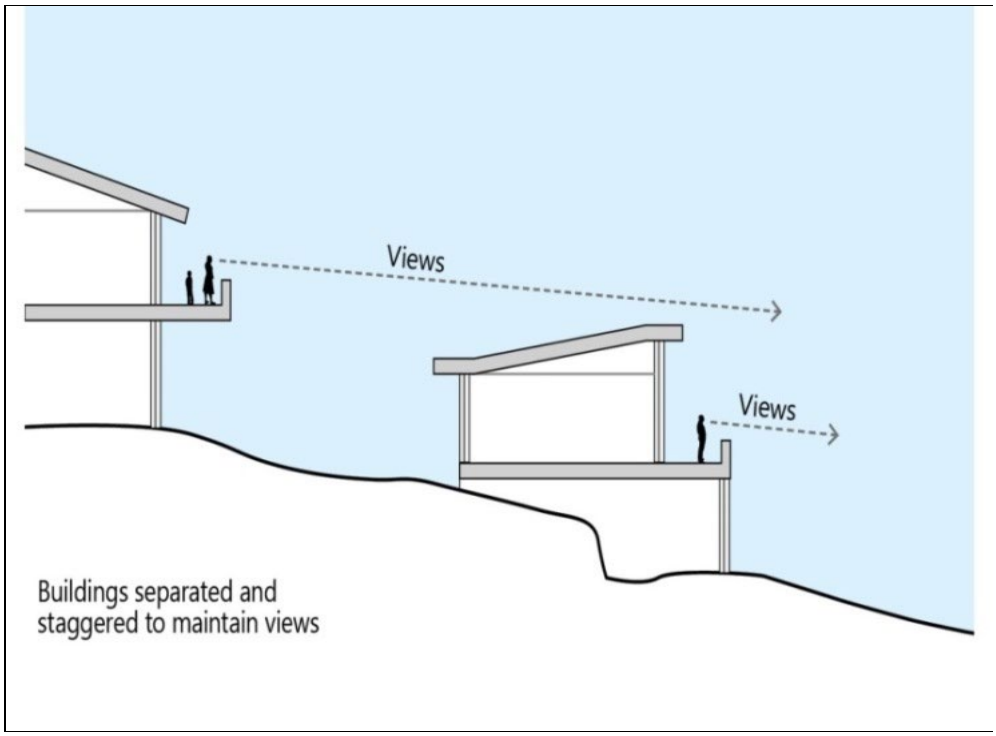



**Figure 3B - Examples of potential solutions to maintain views**

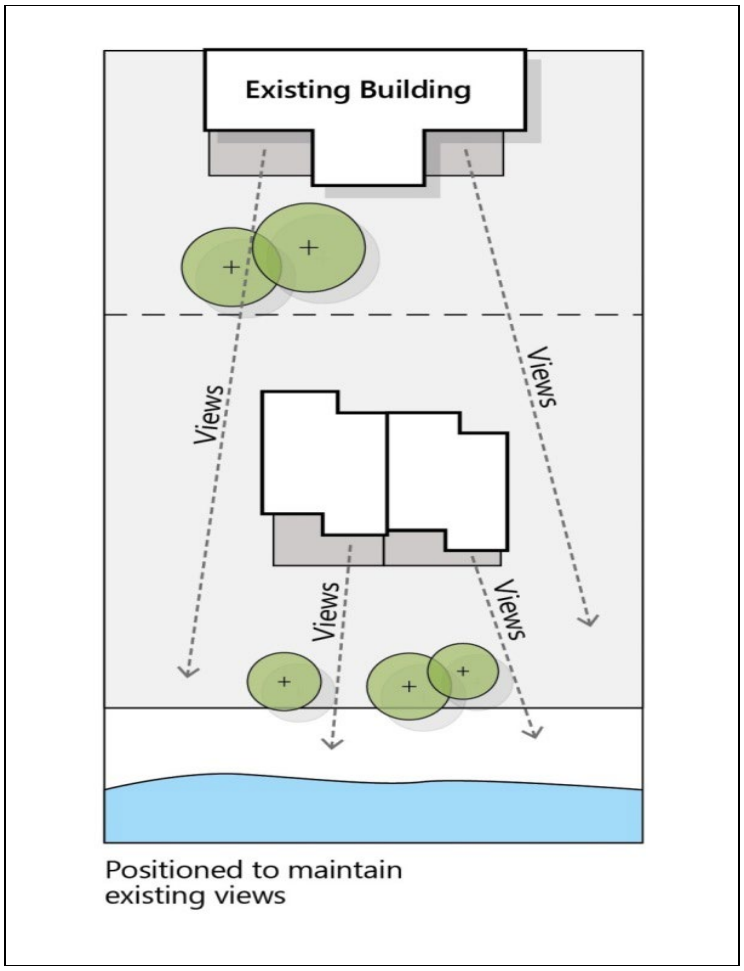



**Figure 3C - Examples of potential solutions to maintain views**

## 2.3.6.2 Visual Privacy

### OBJECTIVES

- To provide and maintain reasonable levels of visual privacy both internally and externally, during day and night
- To maximise outlook and views from living rooms and private open space without compromising visual privacy
- To ensure a high level of amenity by protecting the privacy of residents both within the apartments and in private open space areas

### REQUIREMENTS

a Direct overlooking of internal living areas and private open space to surrounding dwellings shall be minimised by building layout, location and design of windows and balconies and screening devices.

b Where living area windows or balconies of dwellings are proposed within close proximity of living area windows or balconies of adjacent dwellings, they shall be offset by a minimum of 1 metre from the edge of the opposite window and balconies be screened or oriented to ensure visual privacy.

Window openings at first floor level and above should be orientated or designed to minimise the potential for overlooking of adjacent properties and this consequent loss of privacy.

Windows which are orientated towards adjoining properties and do not adequately restrict overlooking will be required to be opaque finish or located at appropriate heights above floor level to minimise overlooking of adjoining properties.

c Building separation distances are identified within Table 3 below:

| Building Height | Between Habitable Rooms | Between Habitable Room and Non-Habitable Room | Between Non-Habitable Rooms |
|---|---|---|---|
| Up to 4 storeys | 12 metres | 9 metres | 6 metres |
| 5 to 8 storeys | 18 metres | 13 metres | 9 metres |
| 9 storeys + | 24 metres | 18 metres | 12 metres |

**Table 3 Recommended building separation distances**

d Where applying separation to buildings on adjoining sites, apply half the minimum separation distance measured to the boundary. At the boundary of a change in zone from apartment buildings to a lower density area, building setback from the boundary may need to be increased.

## 2.3.6.3 Acoustic Privacy

### OBJECTIVES

- To ensure a high level of amenity by protecting the privacy of residents both within the apartments and in private open space areas
- To minimise the impacts of noise on the amenity of occupants through sensitive design
- To design new developments so that reasonable levels of acoustic privacy are provided to dwellings in shop top housing.

### REQUIREMENTS

a Site layout should separate active recreational areas, parking areas, vehicle accessways and service equipment areas from bedroom areas of dwellings.

b Development adjacent to potential external noise sources shall minimise the entry of that noise through building design and external wall treatment. Measures can include sensitive window and balcony placement and offsets, window screening, room orientation and thoughtful location.

c For mixed use development, site layout should separate active recreational areas, parking areas, vehicle access ways, and service equipment areas from bedroom areas of dwellings.

d Details regarding plant and equipment room locations, air conditioning arrangements and waste collection arrangements are to be provided and shall address potential noise impacts.

## 2.3.6.4 Private Open Space and Balconies

### OBJECTIVES

- To provide dwellings with individual private open space areas
- To ensure private open space areas are functional and responsive to the environment, thereby promoting the enjoyment of outdoor living for residents
- To ensure private open space areas (in particular balconies) integrate with the overall architectural form and detail of the development.

### REQUIREMENTS

a All apartments are required to have primary balconies as follows:

| Dwelling Type | | Minimum Area | Minimum Depth |
|---|---|---|---|
| i | Studio | 4m$^2$ | |
| ii | 1 bedroom | 8m$^2$ | 2m |
| iii | 2 bedroom | 10m$^2$ | 2m |
| iv | 3 or more bedroom | 12m$^2$ | 2.4m |
| v | Ground level or podium | 15m$^2$ | 3m |

**Table 4 Private open space**

b Courtyards shall not exceed a maximum grade of 1:14 to optimise useability for residents.

c Wherever a dimension is less than the required minimum it shall not be counted as part of the calculation for private open space areas.

d Private open space areas are to be directly accessible from a living area within the dwelling.

## 2.3.6.5 Sunlight Access

### OBJECTIVES

- To provide adequate natural lighting and minimise the need for artificial lighting during daylight hours

- To ensure that a minimum standard of solar access is available to private open space areas and internal living areas during the winter solstice to provide for a reasonable standard of residential amenity

### REQUIREMENTS

a Living rooms and private open spaces for at least 70% of apartments in a building receive a minimum of 3 hours direct sunlight between 9 am and 3 pm at mid-winter.

b New development shall have due regard for maintaining solar access to adjoining properties and not cause excessive overshadowing. At least 50% of required private open space areas on adjoining lands shall receive at least three hours unobstructed sunlight between the hours of 9 am and 3 pm on June 21 (winter solstice).

c Dwellings should be orientated to allow optimum solar access for internal living areas.

d A weather protected entrance shall be provided to each dwelling.

e Consideration should be given to the provision of natural light and ventilation for excavated car parking areas

## 2.3.6.6 Communal (and public) Open Space

### OBJECTIVES

- To provide residents with both active and passive recreational opportunities
- To allocate an area on site that enables soft landscaping as well as deep soil planting
- To ensure that communal open space is consolidated, configured and designed to be useable and attractive

### REQUIREMENTS

a Communal open spaces is to be provided for developments with more than ten dwellings

b Communal open space shall be provided in no more than two locations at a minimum rate of 10 square metres per dwelling and with a minimum width of 5 metres.

c Minimum 25% of the site area at ground level shall be soft landscaping (planted areas).

d Communal open space areas shall be landscaped and include the provision of facilities such as barbecues, outdoor seating, tennis court, playground equipment or a swimming pool, as appropriate to the scale of the development. Details are to be included in the development application.

e The required communal open space area shall not be provided within the front building setback area. Front setback areas are to be generally reserved for landscaping works.

f Roof-top communal open space may be considered for residential flat developments only where proposed in addition to the required communal open space at ground level. The implications of rooftop open space areas on the overall design of the development, and on privacy and view sharing shall be addressed in the development application.

## 2.3.6.7 Storage

### OBJECTIVE

To ensure that adequate, well designed storage is provided in each apartment

### REQUIREMENTS

Internal design of dwellings shall incorporate adequate storage space relative to the number of bedrooms within the dwelling, to cater for the needs of occupants. This may be provided in the form of an internal cupboard, or alternatively as a designated area within the garage (refer Table 5):

| Dwelling Type | | Required Storage Space |
|---|---|---|
| i | 1 – 2 bedrooms | $3m^3$ floor area |
| ii | 3 or more bedrooms | $6m^3$ floor area |

**Table 5 Storage areas**

## 2.3.6.8 Common Circulation and Spaces

Common circulation and spaces within a building are shared communally by residents. They include lobbies, internal corridors and external galleries, vertical circulation such as lifts and stairs, as well as community rooms and other spaces

### OBJECTIVE

- Common circulation spaces achieve good amenity and properly service the number of apartments

### REQUIREMENT

a The maximum number of dwellings off a circulation core on a single level should generally not be greater than eight.

## 2.3.6.9 Apartment Size and Layout

### OBJECTIVE

- The layout of rooms within an apartment is functional, well organised and provides a high standard of amenity

### REQUIREMENTS

a Apartments are required to have the following minimum internal areas:

| Dwelling Type | | Required internal area |
|---|---|---|
| i | Studio | $35m^2$ |
| ii | 1 bedroom | $50m^2$ |
| iii | 2 bedroom | $70m^2$ |
| iv | 3 bedroom or more | $90m^2$ and an additional 12 $m^2$ for each additional bedroom (greater than 3) |

**Table 6 Apartment Size**

## 2.3.6.10 Ceiling Heights

### OBJECTIVES

- Ceiling height achieves sufficient natural ventilation and daylight access

### REQUIREMENTS

a Apartments are required to have the following ceiling heights:

| Dwelling Type | Height |
|---|---|
| i Habitable rooms | 2.7m |
| ii Non-habitable 2.4m | 2.4m |
| iii 2 storey apartments | 2.7m for main living area floor and 2.4m for second floor, where its area does not exceed 50% of the apartment area |
| iv Attic spaces | 1.8m at edge of room with a 30 degree minimum ceiling slope |
| v Where located in mixed used areas | 3.3m for ground and first floor above to promote future flexibility of use |

**Table 7 Ceiling Heights**

## 2.3.6.11 Natural Ventilation

### OBJECTIVES

- The number of apartments with natural cross ventilation is maximised to create a comfortable indoor environment for residents

### REQUIREMENTS

a At least 60% of apartments are naturally cross ventilated

b Overall depth of a cross-over or cross-through apartment is not to exceed 18m.

*Note: Refer to the ADG for apartment style definitions*

# 2.3.7 PARKING AND ACCESS

### OBJECTIVES

- To provide adequate on-site parking that relates to the environmental and physical constraints of the site
- To minimise the visual dominance of parking to the street and other public areas
- To have car parking areas that minimise the potential for pedestrian and vehicle conflict
- To design connections to alternative transport modes such as walking, cycling and public transport

REQUIREMENTS

## 2.3.7.1 Resident and Visitor Parking

a Car parking is to be provided in accordance with the parking rates identified in Chapter 2.13 Transport and Parking

## 2.3.7.2 Ground Level Parking

Ground level parking is to be avoided for residential flat development. Where site or design constraints require the provision of ground level parking:

a Car parking within setbacks to classified roads shall not be permitted.

b Where parking is proposed within a side or rear building setback and is exposed to adjoining properties, suitable landscaping shall be provided along the boundary to soften the visual impact of the parking and to provide for stormwater infiltration.

c Fully enclosed garages must not visually dominate any building or street elevation.

d Driveways must not be continuous straight lines and shall be offset by landscaped sections.

e A minimum pavement width of 3m is required.

f Driveways shall be offset from any side boundary by 2 metres at the front boundary and may taper back to 1m side setback at the front building line. This offset area, and a minimum of 1m side setback for the full length for the length of the balance of the driveway must be landscaped with trees and shrubs to soften the hardstand areas and provide for infiltration and provide visual appeal to the streetscape.

g Parking or access which is visible from any street or laneway elevation must not visually dominate the street and must respect the architectural qualities of the building and integrate with the overall presentation of the development.

h All geometric standards applicable to site access and car parking layout shall be in accordance with Chapter 2.13 Transport and Parking and *Australian Standard AS/NZS 2890.1*. Applicants should obtain a copy of the relevant vehicle turning circles from *Australian Standard AS/NZS 2890.1* to ensure compliance with the 85th percentile vehicle.

i For sites to be accessed from classified roads or where car parking is proposed along or at the end of a common driveway, an adequate manoeuvring area must also be provided on-site so that the vehicles of residents can enter and leave the site in a forward manner using no more than a 3 point turn. Applications should include turning templates on the plans to demonstrate compliance.

## 2.3.7.3 Basement Car Parking

a Preference is to be given to underground parking wherever possible. Design considerations include:

i retaining and optimising consolidated areas and deep soil zones on the site;

ii facilitating natural ventilation to basement and sub-basement car parking areas where possible;

iii integrating ventilation grills or screening devices of car park openings into the façade design and landscape design;

iv providing safe and secure access for building users.

b Driveways shall be designed to minimise adverse visual impacts on the streetscape and shall be complemented by the landscape design for the site.

c Basement car parking is to be suitably set back from site boundaries so as not to interfere with the provision of deep soil planting zones at ground level.

d Basement access driveways shall be designed in accordance with *AS/NZS 2890.1*.

### 2.3.7.4 Vehicular Access Design

#### OBJECTIVES

- To position street vehicular crossings and driveways to minimise adverse visual impact
- To use existing rear lanes for vehicular access where available
- To ensure safe entry and exit from the site

#### REQUIREMENTS

a Ensure adequate and safe separation distances between vehicular entries and street intersections.

b Optimise the opportunities for active street frontages and streetscape design by:

i making vehicle access points as narrow as possible;

ii minimise the number of vehicle access ways;

iii locating car park entry and access from secondary streets and lanes where possible.

c Improve the appearance of car parking and service vehicle entries, for example by:

i screening garbage collection, loading and servicing areas visually away from the street;

ii setback or recess car park entries from the main façade line;

iii avoid 'black holes' in the façade by providing security doors to car park entries;

iv where doors are not provided, ensure that the visible interior of the car park is incorporated into the façade design and material selection and that building services, pipes and ducts are concealed;

v return the façade material into the car park entry recess for the extent visible from the street as a minimum.

d Use of plain concrete for driveways and open car parking areas is not supported by Council. Details of the proposed treatment shall be provided in the development application.

e Where appropriate, parking may be accessed from a laneway however no reliance can be given to a laneway for the purposes of primary access, waste collection and mail collection.

## 2.3.8 EARTHWORKS

#### OBJECTIVES

- To accommodate the proposed development on site, without the need for excessive cutting and filling of the site or construction of high retaining walls

- To control surface water and / or stormwater on the subject land with any changes to water flows, as a result of cut or fill, not impacting upon any adjoining properties
- To ensure that the design of the development is appropriate for site conditions with consideration given to slope, stability of the land and the privacy of adjoining properties

### REQUIREMENTS

a The amount of cut and / or fill required on a site shall be minimised. This may be achieved by stepping buildings down a site, and by locating the finished ground floor level as close to natural ground level as practicable.

b Details of any proposed retaining walls, including construction details, height and location on the site shall be provided with the development application.

## 2.3.9 LANDSCAPING

### OBJECTIVES

- To improve habitat for native indigenous flora and fauna
- To provide for softening of building forms and enhancement of the urban environment
- To assist in the reduction of stormwater runoff from a site
- To improve urban air quality
- To relate landscape design and fencing to the desired proportions and character of the streetscape
- To retain existing significant native vegetation on site
- To improve the amenity of open space areas
- To contribute to streetscape character and the amenity of the locality
- To design landscape which contributes to the site's particular and positive characteristics,

### REQUIREMENTS

### 2.3.9.1 Landscape Design

a A suitably qualified landscape professional is to be engaged to undertake the design and construction of landscaping. The landscape design is to demonstrate consideration SEPP 65 and the ADG (where relevant) and the points below:

i provision of appropriate shade from trees or structures;

ii provision of accessible routes within the site and between buildings;

iii screening of car parking communal drying areas, swimming pools and courtyards on ground level.

iv the use planting, fencing and other landscape elements appropriate to the scale of the development;

v the visually softening the bulk of large development for the person on the street;

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vi the incorporation of suitable deep soil zones;

vii the visually softening hardstand areas associated with car parking, including paving design / unit paving and shade tree planting.

viii the incorporation of native trees, shrubs and ground covers endemic to the area;

ix the retention and incorporation of changes of level, visual markers, views and any significant site elements;

x the retention of existing vegetation on site.

### 2.3.9.2 Street Trees

a All development shall incorporate street tree plantings at a rate of at least two semi-advanced trees per 15 metres of frontage. Details of the proposed street tree planting including species and locations shall be submitted with the development application and included as part of the landscape plan. Street trees are to be maintained and nurtured until established.

b A street tree planting plan shall be included as part of the landscape design report and is to include the location of any services within the footpath area.

### 2.3.9.3 Deep Soil

a A minimum 50% of the required soft landscaped area of the site at ground level shall be a deep soil zone. This may be achieved by optimising the retention provision of consolidated deep soil zones within a site by:

i the design of basement and sub-basement car parking, so as not to fully cover the site;

ii the use of front and side setbacks for deep soil planting.

b Optimise the extent of deep soil zones beyond the site boundaries by locating them contiguous with the deep soil zones of adjoining properties.

c Existing native vegetation is to be incorporated where possible.

### 2.3.9.4 Fencing

a Details of the material, height, type and extent of all proposed fencing shall be shown on the development application plans. Design considerations may include:

i materials selection, including percentage of solid to transparent materials;

ii height;

iii vertical or horizontal rhythms along the street, such as vertical entry elements, boundary markers or fence post frequency;

iv location and frequency of entry openings or gates;

v location from site boundary.

b Clearly delineate the private and public domain without compromising safety and security by:

i designing fences and walls which provide privacy and security while not eliminating views, outlook, light and air;

ii Limiting the length and height of retaining walls.

c Retain and enhance the amenity of the of the public domain by:

i avoiding the use of continuous lengths of blank walls at street level;

ii using planting to soften the edges of any raised terraces to the street, such as over sub-basement car parks, and reduce their apparent scale.

d Select durable materials which can be easily cleaned and are graffiti resistant.

e Dividing fencing shall not adversely affect flow of surface water or create flooding problems to adjoining properties.

f Where a courtyard is proposed, the enclosing fence shall be of a decorative nature and 1.8 metres in height.

g Courtyard fencing may only be permitted within the front setback area for allotments with frontage to classified roads to provide noise attenuation; and to optimise solar access. The fence shall be erected no closer than a minimum of 1.5 metres from the front boundary alignment and this 1.5 metre setback shall be properly landscaped. Fences staggered with planting over the 1.5 metre setback may also be considered.

h Decorative fencing of maximum 1.2 metres height is permitted along the front boundary.

i Any fencing which is visible from the street or public places shall be decorative in style, forming part of the architectural and landscaping design concept for the site. Fencing should not detract from the streetscape or character of the area. Plain colourbond and /or timber paling fences are unacceptable in this regard. A combination of materials and articulation of the fence plane is required in order to achieve better presentation to the public domain, as illustrated above.

# 2.3.10 CIVIL WORKS AND SERVICES

### OBJECTIVE

- To ensure that all development sites have adequate services to cater for future occupants

## 2.3.10.1 Services – General

### REQUIREMENTS

a All applications shall provide details of the proposed method of sewerage disposal from the site. For all forms of residential development the preferred method is gravity-fed connection to the reticulated sewer system.

b All sites shall be provided with adequate water and sewer services, as well as telecommunications and power.

c All applications shall provide details of potential impacts on existing services, for example nearby drainage, water or sewer lines.

d All external attachments should be fully integrated with the façade design e.g.: stormwater downpipes, meter boxes and other services.

e Site services and facilities (such as letterboxes and drying yards) should be designed:

i to enable safe and convenient access by residents;

ii in an aesthetically sensitive way;

iii to have regard to the amenity of adjoining developments and streetscape;

iv to require minimal maintenance; and

v to be visually integrated with the development;

vi to meet service authority requirements.

f The construction of kerb and guttering, associated street drainage, pavement construction and foot paving across the street frontages is a standard requirement for all residential flat development in the Central Coast LGA, where these do not currently exist, or Council agrees that exceptional circumstances exist.

g In the event that the development is determined to be an exceptional circumstance, an alternative treatment to kerb and gutter such as mountable kerb, concrete dish drain, cemented paving stones or other treatment will be required with the exact type based upon the characteristics of the site.

## 2.3.10.2 Stormwater Management

### OBJECTIVE

- To ensure that land can be adequately drained for the health and convenience of residents, and that the development does not contribute to drainage or flooding problems elsewhere

### REQUIREMENTS

a All proposed development is to comply with Council's Civil Works Specification

b A stormwater management plan is to be submitted with the development application, incorporating one of the following:

i the provision of on-site stormwater detention with delayed release into the stormwater system; or

ii site design to minimise impervious areas and maximise on-site infiltration so increased run-off does not reach the stormwater system; or

iii a combination of both. Due consideration will be given to the location of the development and the impacts a detention system will have on the catchment drainage.

c Site works are not to obstruct or divert overland flows from upstream properties.

d All excess stormwater runoff from roof and paved areas shall be directed via gravity fed systems into inter-allotment or street stormwater drainage system. Charged systems will not be accepted.

e Where easements over downstream properties are required, evidence of agreement with the relevant property owners is to be submitted with the development application.

### 2.3.10.3 Garbage & Waste Services

#### OBJECTIVES

- To avoid the generation of waste through design, material selection and building practices
- To plan for the types, amount and disposal of waste to be generated during demolition, excavation and construction of development
- To encourage waste minimisation, including material separation, reuse and recycling
- To ensure efficient storage and collection of waste and quality design of facilities

#### REQUIREMENTS

a All proposed development is to comply with the requirements of the Chapter 2.14 Site Waste Management.

b Waste management systems for residential development are to be provided in accordance with Council's Waste Control Guidelines. Details of waste recycling arrangements must also be included in the Waste Management Plan.

c Separate waste storage facilities must be provided for commercial and residential components of a development.

d For mixed use proposals, if an elevator is provided for residential use, it must not be used for retail loading or waste removal.

## 2.3.11. SAFETY AND SECURITY

Good design optimises safety and security, both internal to the development and for the public domain. This is achieved by maximising overlooking of public and communal spaces while maintaining internal privacy, avoiding dark and non-visible areas, maximising activity on streets, providing clear, safe access points, providing quality public spaces that cater for desired recreational uses, providing lighting appropriate to the location and desired activities, and clear definition between public and private spaces.

### 2.3.11.1 Crime Prevention

#### OBJECTIVES

- To ensure developments are safe and secure for residents and visitors
- To intensify the perception of risk to persons engaged in crime, by increasing the possibility of detection, challenge and capture
- To contribute to the safety of the public domain
- To intensify the effort required to commit crime, by increasing the time, energy or resources which need to be expended

#### REQUIREMENTS

a Pedestrian access shall be clearly defined, appropriately lit, visible to others and provide direct access to dwellings from areas likely to be used at night.

b Crime Prevention Through Environmental Design (CPTED) is a situational crime prevention strategy that focuses on planning, design and place management. It seeks to influence the design of buildings and places to reduce the opportunities for crime. Development shall be designed in accordance with the CPTED principles (surveillance, access control, territorial reinforcement and space management), as provided in Appendix B.

c A formal Crime Risk Assessment (Safer by Design evaluation) involving the NSW Police may be required for larger developments (i.e. over 20 dwellings), which in Council's opinion could create a crime risk. Proponents of development which may create a crime risk are advised to refer to the NSW Government's publication *'Crime Prevention and the Assessment of Development Applications*.

# 2.3.12. SOCIAL DIMENSIONS

Good design responds to the social context and needs of the local community in terms of lifestyles, affordability, and access to social facilities. New developments should optimise the provision of housing to suit the social mix and needs in the neighbourhood or, in the case of precincts undergoing transition, provide for the desired future community.

## 2.3.12.1 Housing Choice

### OBJECTIVES

- To provide a diversity of apartment types, which cater for different household requirements now and in the future
- To maintain equitable access to new housing by cultural and socio-economic groups
- To encourage housing designs which meet the broadest range of occupants' needs
- To encourage adaptive re-use

### REQUIREMENTS

a A variety of dwelling types is encouraged between one, two, three and four bedroom apartments; particularly in large residential flat developments and on the ground floor.

b 10% of units in residential flat developments shall be designed as suitable for adaptation for occupation by disabled / aged persons, as outlined in *AS 4299: Adaptable Housing*. A higher rate of adaptable housing of 15% is encouraged.

## 2.3.12.2 Facilities and Amenities

### OBJECTIVES

- To have adequate provision made for site facilities
- To have facilities that are functional and accessible to all residents and easy to maintain
- To have site facilities carefully and sensitively integrated into development so as not to be obtrusive, noisy or unsightly

## REQUIREMENTS

a A meeting place for residents is encouraged in all developments to avoid social isolation. In smaller developments this could simply be a seat and small shelter within the common open space. Other examples could include within an enlarged entry area, or adjacent to the letterbox area, etc.

b Larger developments should include a reasonably sized common/meeting room.

c An individual laundry shall be provided within each dwelling which may be separate or included as part of another room.

d Drying areas shall be provided in common open space areas, in accordance with the requirements of the *Building Code of Australia*.

e Within each development, provision shall be made for a car washing facility. This may be:

i In the case of development with basement car parking, a covered visitor car parking space, which is bunded and connected with Council's sewerage system. This will necessitate locating a tap, bunding and drain in a position that will not interfere with traffic movement and requires a trade waste application.

ii In the case of development without basement car parking, a paved area having minimum dimensions of 5m x 2.7m, directly accessible from the driveway, upon which car washing should be encouraged by way of an appropriate sign. The car washing area is to be located and designed to drain to a grassed or landscaped area located within a common area and sufficient in size to absorb wastewater from car washing. This may be provided in a visitor space.

# APPENDIX A – SUBMISSION INFORMATION

| Documentation | Required information – all applications | Additional Required Information<br><br>SEPP 65 Applications |
|---|---|---|
| **Statement of Environmental Effects** | Addressing the requirements of the *Environmental Planning and Assessment Regulation 2021* | • An explanation of the design in terms of the design quality principles set out in Schedule 1 of *State Environmental Planning Policy No 65 - Design Quality of Residential Apartment Development* – *see* Appendix B<br>• Evidence from a qualified designer that the "objectives" listed under Part 3A to 3J and Part 4A to Part 4X of the ADG have been addressed. This can be achieved by following the guidance provided under Appendix C as follows:<br><br>1. Demonstrating compliance with the development provisions listed under ***Design criteria*** and the direction provided under ***Design guidance*** for the relevant ***Objectives.***<br>2. In instances where any variation is sought for any of the ***Design criteria*** it must be justified that the intent of the relevant ***Objective(s)*** has been met. by responding to each relevant component of ***Design guidance***<br>3. In instances where there is no ***Design criteria*** provided, for an ***Objective(s)*** responding to each element of ***Design guidance*** demonstrating how the proposal meets the relevant ***Objective(s)***.<br>*Note: Some provisions under Appendix C differ from those in the ADG where it is considered specifically appropriate for the Central Coast Local Government Area or where it is considered additional guidance is required.*<br><br>4. Evidence from a qualified designer that he or she designed or directed the design of the proposed development |

| Documentation | Required information – all applications | Additional Required Information<br><br>SEPP 65 Applications |
|---|---|---|
| **Site and context analysis** | The following is an indicative checklist of issues to be addressed by the Site Analysis Plan:<br>• orientation: north point and aspect, consider the movement of the sun, particularly at winter solstice;<br>• topography: slope of the land at 0.2m intervals where cut and fill or benching of the site is proposed, (otherwise 1.0m intervals) and direction of fall;<br>• streetscape: setback patterns, position and form of existing houses and developments on adjacent and opposite lands; overall height and shadows from adjacent buildings;<br>• context: location of the site in relation to transport, nearby schools, community facilities or shops. (Special consideration for prominent sites including elevated or rural land, corner sites, heritage and cultural issues);<br>• vegetation: existing trees and vegetation on the land, on adjoining land and in the street / locality and their true canopy spread within or onto the site;<br>• privacy: any windows or private areas of neighbouring developments facing the land;<br>• noise and light: location and extent of nearby sources of noise or light impacts (e.g. major roads, intersections, sports fields or commercial areas);<br>• views: consideration of view corridors to and from the site and neighbours' views;<br>• prevailing winds: these can vary for a particular site, e.g. coastal areas. Orientation to take advantage of prevailing breezes for natural ventilation can add greatly to comfort levels within the dwelling;<br>• services: location of utility services (including stormwater drainage lines, electricity poles and kerb crossings);<br>• vehicle access: best position for a driveway;<br>• survey constraints: surveyed location of any easements, rights of way or other relevant restrictions;<br>• security: any natural surveillance opportunities to and from the site;<br>• existing structures: including details of existing fences, retaining walls and buildings on site.<br>A contextual analysis shall be submitted with applications, addressing the following:<br>• the social context;<br>• the economic context;<br>• the environmental context;<br>• the urban design context, including consideration of existing | As per Appendix 1 of the ADG |
| **Site plan** | A scale drawing showing:<br>• any proposed site amalgamation or subdivision<br>• location of any proposed buildings or works in relation to setbacks, building envelope controls and building separation dimensions<br>• proposed finished levels of land in relation to existing and proposed buildings and roads<br>• pedestrian and vehicular site entries and access<br>• interface of the ground floor plan with the public domain and | |

| Documentation | Required information – all applications | Additional Required Information<br><br>SEPP 65 Applications |
|---|---|---|
| | with open spaces within the site<br>• areas of communal open space and private open space<br>• indicative locations of planting and deep soil zones including retained or proposed significant trees | |
| **Landscape plan** | A scale drawing showing:<br>• the building footprint of the proposal including pedestrian, vehicle and service access<br>• trees to be removed shown dotted<br>• trees to remain with their tree protection zones (relative to the proposed development)<br>• deep soil zones and associated tree planting<br>• areas of planting on structure and soil depth<br>• proposed planting including species and size<br>• details of public space, communal open space and private open space<br>• external ramps, stairs and retaining wall levels<br>• security features and access points<br>• built landscape elements (fences, pergolas, walls, planters and water features)<br>• ground surface treatment with indicative materials and finishes<br>• site lighting<br>• water management and irrigation concept design | |
| **Floor plans** | A scale drawing showing:<br>• all levels of the building including roof plan<br>• layout of entries, circulation areas, lifts and stairs, communal spaces, and service rooms with key dimensions and RLs shown<br>• apartment plans with apartment numbers and areas, all fenestration, typical furniture layouts for each apartment type, room dimensions and intended use and private open space dimensions<br>• accessibility clearance templates for accessible units and common spaces<br>• visual privacy separation shown and dimensions where necessary<br>• vehicle and service access, circulation and parking<br>• storage areas | |
| **Elevations** | A scale drawing showing:<br>• proposed building height and RL lines<br>• building height control<br>• setbacks or envelope outline<br>• building length and articulation<br>• the detail and features of the facade and roof design<br>• any existing buildings on the site<br>• building entries (pedestrian, vehicular and service)<br>• profile of buildings on adjacent properties or for 50m in each direction, whichever is most appropriate | |

| Documentation | Required information – all applications | Additional Required Information<br><br>SEPP 65 Applications |
|---|---|---|
| **Sections** | A scale drawing showing:<br>• proposed building height and RL lines<br>• building height control<br>• setbacks or envelope outline<br>• adjacent buildings<br>• building circulation<br>• the relationship of the proposal to the ground plane, the street and open spaces particularly at thresholds<br>• the location and treatment of car parking<br>• the location of deep soil and soil depth allowance for planting on structure (where applicable)<br>• building separation within the development and between neighbouring buildings<br>• ceiling heights throughout the development<br>• detailed sections of the proposed facades | |
| **Solar access study** | Graphic documentation at winter solstice (21 June) at a minimum of hourly intervals showing:<br>• number of hours of solar access to the principal communal open space<br>• number of hours of solar access to units within the proposal and tabulation of results<br>• overshadowing of existing adjacent properties and overshadowing of future potential development where neighbouring sites are planned for higher density<br>• elevation shadows if shadow is likely to fall on neighbouring windows, openings or solar panels | |
| **Cross ventilation study** | Where required, graphic documentation of unobstructed path of air movement through dual aspect apartments and tabulation of results | |
| **Material and finishes board** | A sample board of the proposed external materials, finishes and colours of the proposal, keyed to elevations | |
| **Illustrative views** | Photomontages or similar rendering or perspective drawings illustrating the proposal in the context of surrounding development. | |
| **Models** | | A three dimensional computer generated model showing views of the development from adjacent streets and buildings<br>A physical model that shows the massing of the proposal that includes relevant context (particularly for developments of 20 apartments or more, or on contentious sites) if required by the consent authority |

# APPENDIX B – SEPP 65 DESIGN PRINCIPLES

| | |
|---|---|
| ***Principle 1: Context and Neighbourhood Character***<br>Good design responds and contributes to its context. Context is the key natural and built features of an area, their relationship and the character they create when combined. It also includes social, economic, health and environmental conditions.<br><br>Responding to context involves identifying the desirable elements of an area's existing or future character. Well-designed buildings respond to and enhance the qualities and identity of the area including the adjacent sites, streetscape and neighbourhood. Consideration of local context is important for all sites, including sites in established areas, those undergoing change or identified for change | How has this design principle been considered? |
| ***Principle 2: Built Form and Scale***<br>Good design achieves a scale, bulk and height appropriate to the existing or desired future character of the street and surrounding buildings.<br><br>Good design also achieves an appropriate built form for a site and the building's purpose in terms of building alignments, proportions, building type, articulation and the manipulation of building elements. Appropriate built form defines the public domain, contributes to the character of streetscapes and parks, including their views and vistas, and provides internal amenity and outlook. | How has this design principle been considered? |
| ***Principle 3: Density***<br>Good design achieves a high level of amenity for residents and each apartment, resulting in a density appropriate to the site and its context.<br><br>Appropriate densities are consistent with the area's existing or projected population. Appropriate densities can be sustained by existing or proposed infrastructure, public transport, access to jobs, community facilities and the environment. | How has this design principle been considered? |
| ***Principle 4: Sustainability***<br>Good design combines positive environmental, social and economic outcomes. Good sustainable design includes use of natural cross ventilation and sunlight for the amenity and liveability of residents and passive thermal design for ventilation, heating and cooling reducing reliance on technology and operation costs. Other elements include recycling and reuse of materials and waste, use of sustainable materials, and deep soil zones for groundwater recharge and vegetation. | How has this design principle been considered? |
| ***Principle 5: Landscape***<br>Good design recognises that together landscape and buildings operate as an integrated and sustainable system, resulting in attractive developments with good amenity. A positive image and contextual fit of well-designed developments is achieved by contributing to the landscape character of the streetscape and neighbourhood. | How has this design principle been considered? |

| | |
|---|---|
| Good landscape design enhances the development's environmental performance by retaining positive natural features which contribute to the local context, co-ordinating water and soil management, solar access, micro-climate, tree canopy, habitat values, and preserving green networks. Good landscape design optimises usability, privacy and opportunities for social interaction, equitable access, respect for neighbours' amenity, provides for practical establishment and long term management. | |
| ***Principle 6: Amenity***<br>Good design positively influences internal and external amenity for residents and neighbours. Achieving good amenity contributes to positive living environments and resident well being.<br><br>Good amenity combines appropriate room dimensions and shapes, access to sunlight, natural ventilation, outlook, visual and acoustic privacy, storage, indoor and outdoor space, efficient layouts and service areas, and ease of access for all age groups and degrees of mobility. | How has this design principle been considered? |
| ***Principle 7: Safety***<br>Good design optimises safety and security, within the development and the public domain. It provides for quality public and private spaces that are clearly defined and fit for the intended purpose. Opportunities to maximise passive surveillance of public and communal areas promote safety.<br><br>A positive relationship between public and private spaces is achieved through clearly defined secure access points and well-lit and visible areas that are easily maintained and appropriate to the location and purpose. | How has this design principle been considered? |
| ***Principle 8: Housing Diversity and Social Interaction***<br>Good design achieves a mix of apartment sizes, providing housing choice for different demographics, living needs and household budgets.<br><br>Well-designed apartment developments respond to social context by providing housing and facilities to suit the existing and future social mix. Good design involves practical and flexible features, including different types of communal spaces for a broad range of people, providing opportunities for social interaction amongst residents. | How has this design principle been considered? |
| ***Principle 9: Aesthetics***<br>Good design achieves a built form that has good proportions and a balanced composition of elements, reflecting the internal layout and structure. Good design uses a variety of materials, colours and textures.<br><br>The visual appearance of well-designed apartment development responds to the existing or future local context, particularly desirable elements and repetitions of the streetscape. | How has this design principle been considered? |

# APPENDIX C – CONSIDERATIONS

| | |
|---|---|
| ***Site Analysis*** | |
| *Objective 3A-1*<br>Site analysis illustrates that design decisions have been based on opportunities and constraints of the site conditions and their relationship to the surrounding context | How has the Design Guidance been considered to meet this objective? |
| ***Orientation*** | |
| *Objective 3B-1*<br>Building types and layouts respond to the streetscape and site while optimising solar access within the development | How has the Design Guidance been considered to meet this objective? |
| *Objective 3B-2*<br>Overshadowing of neighbouring properties is minimised during mid-winter | How has the Design Guidance been considered to meet this objective? |
| ***Public domain interface*** | |
| *Objective 3C-1*<br>Transition between private and public domain is achieved without compromising safety and security | How has the Design Guidance been considered to meet this objective? |
| *Objective 3C-2*<br>Amenity of the public domain is retained and enhanced | How has the Design Guidance been considered to meet this objective? |

| ***Communal and public open space*** | | |
|---|---|---|
| *Objective 3D-1*<br>An adequate area of communal open space is provided to enhance residential amenity and to provide opportunities for landscaping | How has the Design Guidance been considered to meet this objective? | |
| | ***Design Criteria*** | |
| | **Communal open space has a minimum area equal to 25% of the site (see figure 3D.3)** | **Demonstrate compliance with the Design Criteria** |
| | **Developments achieve a minimum of 50% direct sunlight to the principal usable part of the communal open space for a minimum of 2 hours between 9 am and 3 pm on 21 June (mid-winter)** | **Demonstrate compliance with the Design Criteria** |
| *Objective 3D-2*<br>Communal open space is designed to allow for a range of activities, respond to site conditions and be attractive and inviting | How has the Design Guidance been considered to meet this objective? | |
| *Objective 3D-3*<br>Communal open space is designed to maximise safety | How has the Design Guidance been considered to meet this objective? | |

| | |
|---|---|
| *Objective 3D-4*<br>Public open space, where provided, is responsive to the existing pattern and uses of the neighbourhood | How has the Design Guidance been considered to meet this objective? |

***Deep soil zones –***

*Note: Council requirements differ from the ADG for this control*

| | |
|---|---|
| *Objective 3E-1*<br>Deep soil zones provide areas on the site that allow for and support healthy plant and tree growth. They improve residential amenity and promote management of water and air quality | How has the Design Guidance been considered to meet this objective? |

***Design Criteria***

| Site area | Minimum dimensions | Deep soil zone (50% of required soft landscape area) | |
|---|---|---|---|
| less than 650m$^2$ | | | Demonstrate compliance with the Design Criteria |
| 650m$^2$ - 1,500m$^2$ | 3m | | |
| greater than 1,500m$^2$ | 6m | | |
| greater than 1,500m$^2$ with significant existing tree cover | 6m | | |

## *Visual Privacy

*Objective 3F-1*

Adequate building separation distances are shared equitably between neighbouring sites, to achieve reasonable levels of external and internal visual privacy

How has the Design Guidance been considered to meet this objective

***Design Criteria***

| Building height | Habitable rooms and balconies | Non-habitable rooms | Demonstrate compliance with the Design Criteria |
|---|---|---|---|
| up to 12m (4 storeys) | 6m | 3m | |
| up to 25m (5-8 storeys) | 9m | 4.5m | |
| over 25m (9+ storeys) | 12m | 6m | |

| | |
|---|---|
| *Objective 3F-2*<br>Site and building design elements increase privacy without compromising access to light and air and balance outlook and views from habitable rooms and private open space | How has the Design Guidance been considered to meet this objective? |
| ***Pedestrian access and entries*** | |
| *Objective 3G-1*<br>Building entries and pedestrian access connects to and addresses the public domain | How has the Design Guidance been considered to meet this objective? |
| *Objective 3G-2*<br>Access, entries and pathways are accessible and easy to identify | How has the Design Guidance been considered to meet this objective? |
| *Objective 3G-3*<br>Large sites provide pedestrian links for access to streets and connection to destinations | How has the Design Guidance been considered to meet this objective? |
| ***Vehicle Access*** | |
| *Objective 3H-1*<br>Vehicle access points are designed and located to achieve safety, minimise conflicts between pedestrians and vehicles and create high quality streetscapes | How has the Design Guidance been considered to meet this objective? |
| ***Bicycle and Car Parking*** *(also refer to Chapter2.13 Parking and Access)* | |
| **Objective 3J-1*<br>Car parking is provided based on proximity to public transport in metropolitan Sydney and centres in regional areas | How has the Design Guidance been considered to meet this objective? |
| | ***Design criteria*** |

| | | |
|---|---|---|
| | | |
| | Car parking is to be provided in accordance with the following:<br>i 1.5 spaces per dwelling<br>ii 1 space per dwelling if the site is located within 400m walking distance of a train station<br>iii Visitor spaces, calculated on the basis of 0.2 spaces per dwelling, rounded up to the next whole number<br>Properties within 400 metres of train stations at nominated Regional Centres (Metropolitan Sub-Regional Centres - Gosford, Tuggerah and Wyong) adopt the parking rates identified under the RMS Guide to Traffic Generating Development (in accordance with the SEPP 65 Apartment Design Guide). | **Demonstrate compliance with the Design Criteria** |
| *Objective 3J-2*<br>Parking and facilities are provided for other modes of transport | How has the Design Guidance been considered to meet this objective? | |
| *Objective 3J-3*<br>Car park design and access is safe and secure | How has the Design Guidance been considered to meet this objective? | |
| *Objective 3J-4*<br>Visual and environmental impacts of underground car parking are minimised | How has the Design Guidance been considered to meet this objective? | |
| *Objective 3J-5*<br>Visual and environmental impacts of on-grade car parking are minimised | How has the Design Guidance been considered to meet this objective? | |
| *Objective 3J-6*<br>Visual and environmental impacts of above ground enclosed car parking are minimised | How has the Design Guidance been considered to meet this objective? | |
| ***Solar and Daylight Access*** | | |

<table>
<tr><td rowspan="3">Objective 4A-1<br>To optimise the number of apartments receiving sunlight to habitable rooms, primary windows and private open space</td><td colspan="2">How has the Design Guidance been considered to meet this objective?</td></tr>
<tr><td colspan="2">Design criteria</td></tr>
<tr><td>Living rooms and private open spaces of at least 70% of apartments in a building receive a minimum of 3 hours direct sunlight between 9 am and 3 pm at mid-winter<br><br>A maximum of 15% of apartments in a building receive no direct sunlight between 9 am and 3 pm at mid-winter</td><td>Demonstrate compliance with the Design Criteria</td></tr>
<tr><td>Objective 4A-2<br>Daylight access is maximised where sunlight is limited</td><td colspan="2">How has the Design Guidance been considered to meet this objective?</td></tr>
<tr><td>Objective 4A-3<br>Design incorporates shading and glare control, particularly for warmer months</td><td colspan="2">How has the Design Guidance been considered to meet this objective?</td></tr>
<tr><td colspan="3">*Natural Ventilation</td></tr>
<tr><td>Objective 4B-1<br>All habitable rooms are naturally ventilated</td><td colspan="2">How has the Design Guidance been considered to meet this objective?</td></tr>
</table>

| | | |
|---|---|---|
| *Objective 4B-2*<br>The layout and design of single aspect apartments maximises natural ventilation | How has the Design Guidance been considered to meet this objective? | |
| *Objective 4B-3*<br>The number of apartments with natural cross ventilation is maximised to create a comfortable indoor environment for residents | How has the Design Guidance been considered to meet this objective? | |
| | ***Design criteria*** | |
| | **At least 60% of apartments are naturally cross ventilated in the first nine storeys of the building. Apartments at ten storeys or greater are deemed to be cross ventilated only if any enclosure of the balconies at these levels allows adequate natural ventilation and cannot be fully enclosed** | **Demonstrate compliance with the Design Criteria** |
| | **Overall depth of a cross-over or cross-through apartment does not exceed 18m, measured glass line to glass line** | **Demonstrate compliance with the Design Criteria** |

***Ceiling Heights**

| | | | |
|---|---|---|---|
| *Objective 4C-1*<br>Ceiling height achieves sufficient natural ventilation and daylight access | How has the Design Guidance been considered to meet this objective? | | |
| | ***Design criteria*** | | |
| | **Habitable rooms** | **2.7m** | **Demonstrate compliance with the Design Criteria** |
| | **Non-habitable** | **2.4m** | **Demonstrate compliance with the Design Criteria** |
| | **For 2 storey apartments** | **2.7m for main living area floor 2.4m for second floor, where its area does not exceed 50% of the apartment area** | **Demonstrate compliance with the Design Criteria** |
| | **Attic spaces** | **1.8m at edge of room with a 30 degree minimum ceiling slope** | **Demonstrate compliance with the Design Criteria** |

| | | | |
|---|---|---|---|
| | **If located in mixed used areas** | **3.3m for ground and first floor to promote future flexibility of use** | **Demonstrate compliance with the Design Criteria** |
| *Objective 4C-2*<br>Ceiling height increases the sense of space in apartments and provides for well-proportioned rooms | How has the Design Guidance been considered to meet this objective? | | |
| *Objective 4C-3*<br>Ceiling heights contribute to the flexibility of building use over the life of the building | How has the Design Guidance been considered to meet this objective? | | |
| ***Apartment Size and Layout*** | | | |
| *Objective 4D-1*<br>The layout of rooms within an apartment is functional, well organised and provides a high standard of amenity | How has the Design Guidance been considered to meet this objective? | | |
| | ***Design criteria*** | | |
| | **Apartment type** | **Minimum internal area** | |
| | **Studio** | **35m²** | **Demonstrate compliance with the Design Criteria** |
| | **1 bedroom** | **50m²** | **Demonstrate compliance with the Design Criteria** |
| | **2 bedroom** | **70m²** | **Demonstrate compliance with the Design Criteria** |
| | **3 bedroom** | **90m²** | **Demonstrate compliance with the Design Criteria** |
| | **Every habitable room must have a window in an external wall with a total minimum glass area of not less than 10% of the floor area of the room. Daylight and air may not be borrowed from other rooms** | | **Demonstrate compliance with the Design Criteria** |
| | How has the Design Guidance been considered to meet this objective? | | |

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| *Objective 4D-2*<br>Environmental performance of the apartment is maximised | | |
| | ***Design criteria*** | |
| | **Habitable room depths are limited to a maximum of 2.5 x the ceiling height** | Demonstrate compliance with the Design Criteria |
| | **In open plan layouts (where the living, dining and kitchen are combined) the maximum habitable room depth is 8m from a window** | Demonstrate compliance with the Design Criteria |
| *Objective 4D-3*<br>Apartment layouts are designed to accommodate a variety of household activities and needs | How has the Design Guidance been considered to meet this objective? | |
| | ***Design criteria*** | |
| | **Master bedrooms have a minimum area of 10m$_2$ and other bedrooms 9m$_2$ (excluding wardrobe space)** | Demonstrate compliance with the Design Criteria |
| | **Bedrooms have a minimum dimension of 3m (excluding wardrobe space)** | Demonstrate compliance with the Design Criteria |
| | **Living rooms or combined living/dining rooms have a minimum width of:**<br>**3.6m for studio and 1 bedroom apartments**<br><br>**4m for 2 and 3 bedroom apartments** | Demonstrate compliance with the Design Criteria |
| | **The width of cross-over or cross-through apartments are at least 4m internally** | Demonstrate compliance with the Design Criteria |
| ***Private Open Space and Balconies** | | |

<table>
<tr><td>Objective 4E-1<br>Apartments provide appropriately sized private open space and balconies to enhance residential amenity</td><td colspan="4">How has the Design Guidance been considered to meet this objective?</td></tr>
<tr><td rowspan="6"></td><td colspan="4">Design criteria</td></tr>
<tr><td>Dwelling type</td><td>Minimum area</td><td>Minimum depth</td><td>Demonstrate compliance with the Design Criteria</td></tr>
<tr><td>Studio apartments</td><td>4m2</td><td>-</td><td>Demonstrate compliance with the Design Criteria</td></tr>
<tr><td>1 bedroom apartments</td><td>8m2</td><td>2m</td><td>Demonstrate compliance with the Design Criteria</td></tr>
<tr><td>2 bedroom apartments</td><td>10m2</td><td>2m</td><td>Demonstrate compliance with the Design Criteria</td></tr>
<tr><td>3+ bedroom apartments</td><td>12m2</td><td>2.4m</td><td>Demonstrate compliance with the Design Criteria</td></tr>
<tr><td>Objective 4E-2<br>Primary private open space and balconies are appropriately located to enhance liveability for residents</td><td colspan="4">How has the Design Guidance been considered to meet this objective?</td></tr>
<tr><td>Objective 4E-3<br>Private open space and balcony design is integrated into and contributes to the overall architectural form and detail of the building</td><td colspan="4">How has the Design Guidance been considered to meet this objective?</td></tr>
<tr><td>Objective 4E-4<br>Private open space and balcony design maximises safety</td><td colspan="4">How has the Design Guidance been considered to meet this objective?</td></tr>
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| ***Common circulation and spaces** | | |
| *Objective 4F-1*<br>Common circulation spaces achieve good amenity and properly service the number of apartments | How has the Design Guidance been considered to meet this objective? | |
| | ***Design criteria*** | |
| | **The maximum number of apartments off a circulation core on a single level is eight** | **Demonstrate compliance with the Design Criteria** |
| | **For buildings of 10 storeys and over, the maximum number of apartments** sharing a single lift is 40 | **Demonstrate compliance with the Design Criteria** |
| *Objective 4F-2*<br>Common circulation spaces promote safety and provide for social interaction between residents | How has the Design Guidance been considered to meet this objective? | |
| ***Storage** | | |
| **Objective 4G-1*<br>Adequate, well designed storage is provided in each apartment | How has the Design Guidance been considered to meet this objective? | |
| | ***Design criteria*** | |
| | **Dwelling type** | **Storage size volume** |
| | **Studio apartments** | **4m3** |
| | **1 bedroom apartments** | **6m3** |
| | **2 bedroom apartments** | **8m3** |
| | **3+ bedroom apartments** | **10m3** |
| ***Acoustic Privacy*** | | |

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| *Objective 4H-1*<br>Noise transfer is minimised through the siting of buildings and building layout | How has the Design Guidance been considered to meet this objective? |
| *Objective 4H-2*<br>Noise impacts are mitigated within apartments through layout and acoustic treatments | How has the Design Guidance been considered to meet this objective? |
| ***Noise and Pollution*** | |
| *Objective 4J-1*<br>In noisy or hostile environments the impacts of external noise and pollution are minimised through the careful siting and layout of buildings | How has the Design Guidance been considered to meet this objective? |
| *Objective 4J-2*<br>Appropriate noise shielding or attenuation techniques for the building design, construction and choice of materials are used to mitigate noise transmission | How has the Design Guidance been considered to meet this objective? |

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| ***Apartment Mix*** | |
| *Objective 4K-1*<br>A range of apartment types and sizes is provided to cater for different household types now and into the future | How has the Design Guidance been considered to meet this objective? |
| *Objective 4K-2*<br>The apartment mix is distributed to suitable locations within the building | How has the Design Guidance been considered to meet this objective? |
| ***Ground floor apartments*** | |
| *Objective 4L-1*<br>Street frontage activity is maximised where ground floor apartments are located | How has the Design Guidance been considered to meet this objective? |
| *Objective 4L-2*<br>Design of ground floor apartments delivers amenity and safety for residents | How has the Design Guidance been considered to meet this objective? |
| ***Facades*** | |
| *Objective 4M-1*<br>Building facades provide visual interest along the street while respecting the character of the local area | How has the Design Guidance been considered to meet this objective? |
| *Objective 4M-2*<br>Building functions are expressed by the facade | How has the Design Guidance been considered to meet this objective? |

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| ***Roof design*** | |
| *Objective 4N-1*<br>Roof treatments are integrated into the building design and positively respond to the street | How has the Design Guidance been considered to meet this objective? |
| *Objective 4N-2*<br>Opportunities to use roof space for residential accommodation and open space are maximised | How has the Design Guidance been considered to meet this objective? |
| *Objective 4N-3*<br>Roof design incorporates sustainability features | How has the Design Guidance been considered to meet this objective? |
| ***Landscape Design*** | |
| *Objective 4O-1*<br>Landscape design is viable and sustainable | How has the Design Guidance been considered to meet this objective? |
| *Objective 4O-2*<br>Landscape design contributes to the streetscape and amenity | How has the Design Guidance been considered to meet this objective? |
| ***Planting on structures*** | |
| *Objective 4P-1*<br>Appropriate soil profiles are provided | How has the Design Guidance been considered to meet this objective? |
| *Objective 4P-2*<br>Plant growth is optimised with appropriate selection and maintenance | How has the Design Guidance been considered to meet this objective? |

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| *Objective 4P-3*<br>Planting on structures contributes to the quality and amenity of communal and public open spaces | How has the Design Guidance been considered to meet this objective? |
| ***Universal Design*** | |
| *Objective 4Q-1*<br>Universal design features are included in apartment design to promote flexible housing for all community members | How has the Design Guidance been considered to meet this objective? |
| *Objective 4Q-2*<br>A variety of apartments with adaptable designs are provided | How has the Design Guidance been considered to meet this objective? |
| *Objective 4Q-3*<br>Apartment layouts are flexible and accommodate a range of lifestyle needs | How has the Design Guidance been considered to meet this objective? |
| ***Adaptive re-use*** *(where applicable)* | |
| *Objective 4R-1*<br>New additions to existing buildings are contemporary and complementary and enhance an area's identity and sense of place | How has the Design Guidance been considered to meet this objective? |
| *Objective 4R-2*<br>Adapted buildings provide residential amenity while not precluding future adaptive reuse | How has the Design Guidance been considered to meet this objective? |

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| ***Mixed-use*** *(where applicable and refer to Chapter 5.5)* | |
| *Objective 4S-1*<br>Mixed use developments are provided in appropriate locations and provide active street frontages that encourage pedestrian movement | How has the Design Guidance been considered to meet this objective? |
| *Objective 4S-2*<br>Residential levels of the building are integrated within the development, and safety and amenity is maximised for residents | How has the Design Guidance been considered to meet this objective? |
| ***Awnings and Signage*** *(also refer to Chapter 5.5 and Chapter 2.12)* | |
| *Objective 4T-1*<br>Awnings are well located and complement and integrate with the building design | How has the Design Guidance been considered to meet this objective? |
| *Objective 4T-2*<br>Signage responds to the context and desired streetscape character | How has the Design Guidance been considered to meet this objective? |
| ***Energy Efficiency*** | |
| *Objective 4U-1*<br>Development incorporates passive environmental design | How has the Design Guidance been considered to meet this objective? |
| *Objective 4U-2*<br>Development incorporates passive solar design to optimise heat storage in winter and reduce heat transfer in summer | How has the Design Guidance been considered to meet this objective? |
| *Objective 4U-3*<br>Adequate natural ventilation minimises the need for mechanical ventilation | How has the Design Guidance been considered to meet this objective? |

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| ***Water management and conservation*** *(read in conjunction with Council's Civil Works Specification)* | |
| *Objective 4V-1*<br>Potable water use is minimised | How has the Design Guidance been considered to meet this objective? |
| *Objective 4V-2*<br>Urban stormwater is treated on site before being discharged to receiving waters | How has the Design Guidance been considered to meet this objective? |
| *Objective 4V-3*<br>Flood management systems are integrated into site design | How has the Design Guidance been considered to meet this objective? |
| ***Waste Management*** *(read in conjunction with –the Waste Management Chapter and Guidelines)* | |
| *Objective 4W-1*<br>Waste storage facilities are designed to minimise impacts on the streetscape, building entry and amenity of residents | How has the Design Guidance been considered to meet this objective? |
| *Objective 4W-2*<br>Domestic waste is minimised by providing safe and convenient source separation and recycling | How has the Design Guidance been considered to meet this objective? |
| ***Building Maintenance*** | |
| *Objective 4X-1*<br>Building design detail provides protection from weathering | How has the Design Guidance been considered to meet this objective? |
| *Objective 4X-2*<br>Systems and access enable ease of maintenance | How has the Design Guidance been considered to meet this objective? |

| *Objective 4X-3*<br>Material selection reduces ongoing maintenance costs | How has the Design Guidance been considered to meet this objective? |
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